PART V

AMENDMENTS TO THE PROHIBITION OF *BENAMI* PROPERTY TRANSACTIONS ACT, 1988

Amendment of Act 45 of 1988.

171. In the Prohibition of *Benami* Property Transactions Act, 1988, with effect from the 1st day of April, 2023,—

(*a*) in section 2, in clause (*18*),—

(*I*) in sub-clause (*i*), the word "and" occurring at the end shall be omitted;

(*II*) in sub-clause (*ii*), the word "and" shall be inserted at the end;

(*III*) after clause (*ii*), the following clause shall be inserted, namely:—

"(*iii*) the High Court within the jurisdiction of which the office of the Initiating Officer is located,—

(*a*) where the aggrieved party does not ordinarily reside or carry on business or personally work for gain in the jurisdiction of any High Court;

(*b*) where the Government is the aggrieved party and any of the respondents do not ordinarily reside or carry on business or personally work for gain in the jurisdiction of any High Court;";

(*b*) in section 46,—

(*i*) in sub-section (1), for the words "of the order", the words "on which such order is received by the Initiating Officer or received by such person," shall be substituted;

(*ii*) in sub-section (1A), for the words "of that order", the words "on which such order is received by such person" shall be substituted.